BEFORE THE NATIONAL COMPANY LAW TRIBUNAL,

PRINCIPAL BENCH

NEW DELHI

Company Application No.CA (CAA)69/PB/2018

Judgment dated: 18.01.2019

Coram:

CHIEF JUSTICE (Rtd.) SHRI M.M. KUMAR,

HON'BLE PRESIDENT

&

MR. S.K. MOHAPATRA,

MEMBER (TECHNICAL)

In the matter of:

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

AND

IN THE MATTER OF SCHEME OF AMALGAMATION

AMONGST

1. **DOLPHIN INVESTMENT MANAGEMENT PRIVATE LIMITED**

Having Registered Office at:

A-87, Lower Ground Floor,

Malviya Nagar,

Main Shivalik Road

New Delhi-110017

..... Applicant Company No. 1 / Transferor Company

GECKO TECHNOLOGIES PRIVATE LIMITED

Having Registered Office at:

A-87, Lower Ground Floor,

Malviya Nagar,

Main Shivalik Road

New Delhi-110017

..... Applicant Company No. 2 / Transferor Company

SRI KRIPA SHARE AND SECURITIES PRIVATE LIMITED

Having Registered Office at:

A-87, Lower Ground Floor,

Malviya Nagar,

Main Shivalik Road

New Delhi-110017

..... Applicant Company No. 3 / Transferor Company

AKANKSHA FACILITY MANAGEMENT PRIVATE LIMITED

Having Registered Office at:

A-87, Lower Ground Floor,

Malviya Nagar,

Main Shivalik Road

New Delhi-110017

..... Applicant Company No.4 / Transferor Company

TALENT ACCESS HR SERVICES PRIVATE LIMITED

Having Registered Office at:

A-87, Lower Ground Floor,

Malviya Nagar,

Main Shivalik Road

New Delhi-110017

..... Applicant Company No. 5 / Transferor Company

SHIVA INFRA SOLUTIONS PRIVATE LIMITED

Having Registered Office at:

A-87, Lower Ground Floor,

Malviya Nagar,

Main Shivalik Road

New Delhi-110017

..... Applicant Company No.6 / Transferee Company

For the Applicants: Ashish Middha, Advocate

ORDER

M.M. KUMAR, PRESIDENT

1. This is an application filed by the applicant companies under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 (for brevity 'The Act') read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for brevity 'The Rules') in relation to the Scheme of Amalgamation (for brevity 'The Scheme') proposed between applicants. In terms of Section 230 and 232 of the 2013 Act following prayers have been made for the orders: -

a) Dispensation with the requirement of convening the meeting of the equity shareholders of the transferor and transferee companies and also to dispensation with the requirement of issue and publication of notices of the same and appointment of chairman for the meetings.

b) Dispensation with the requirement for convening the meeting of that secured creditors of the transferor companies no.1 to 5 and the transferee company and also to dispensation with the requirement of issue and publication of notices of the same and appointment of chairman for the meetings.

c) Dispensation with the requirement of convening the meeting of the unsecured creditors of the transferor company no. 1 to 5 and transferee company in view of their consents of more than 90% and also dispensation

with the requirement of issue and publication of notices of the same and appointment of chairman for the meetings; and

d) *Pass any such further as this Hon'ble Tribunal may deem fit and proper in the facts and circumstances of present case.*

2. Affidavits in support of the applications sworn for and on behalf of the Applicant Company 1 to Applicant Company 5 have been filed by Mr. Mithilesh Giri being the authorised representative.

3. It is represented that the Scheme does not contemplate any corporate debt restructuring exercise as contemplated under Section 230(2) of the Act. Learned Counsel has taken us through the averments made in the application as well as the typed set of documents annexed there with. It is further represented that the application filed by the a applicants is maintainable in view of Rule 3(2) of the Rules and Learned Counsel also represented that the registered offices of all the applicant companies are situated within the territorial jurisdiction of this Tribunal and fall within the domain of Registrar of Companies, NCT, New Delhi.

4. In relation to the Transferor/Applicant Company no. 1, it has been represented that company has 3 Shareholders. We are further apprised that the Transferor/Applicant Company No. 1 has no Secured Creditor and no Unsecured Creditor. All of the shareholders have given their consents by way of affidavits. In relation to the shareholders, the transferor/Applicant

Company No. 1 seeks a direction for dispensing with holding of meetings for the purpose of obtaining their approval to the proposed Scheme.

5. In relation to the Transferor/Applicant company no. 2, it has been represented that company has 3 Shareholders. We are further apprised that the Transferor/Applicant Company No. 2 has no Secured and one Unsecured Creditor. All of the shareholders and the sole unsecured creditor have given their consents by way of affidavits. In relation to the shareholders and creditors, the transferor/Applicant Company No. 2 seeks a direction for dispensing with holding of meetings for the purpose of obtaining their approval to the proposed Scheme.

6. In relation to the Transferor/Applicant company no. 3, it has been represented that company has 5 Shareholders. We are further apprised that the Transferor/Applicant Company No. 3 has no Secured and one Unsecured Creditor. All of the shareholders and the sole unsecured creditor have given their consents by way of affidavits. In relation to the shareholders and creditor, the transferor/Applicant Company No. 3 seeks a direction for dispensing with holding of meetings for the purpose of obtaining their approval to the proposed Scheme.

7. In relation to the Transferor/Applicant company no. 4, it has been represented that company has 2 Shareholders. We are further apprised that the Transferor/Applicant Company No. 4 has no Secured and one Unsecured Creditor. All of the shareholders and the sole unsecured creditor

have given their consents by way of affidavits. In relation to the shareholders and creditors, the transferor/Applicant Company No. 4 seeks a direction for dispensing with holding of meetings for the purpose of obtaining their approval to the proposed Scheme.

8. In relation to the Transferor/Applicant company no. 5, it has been represented that company has 5 Shareholders. We are further apprised that the Transferor/Applicant Company No. 5 has no Secured Creditor and no Unsecured Creditor. All of the shareholders have given their consents by way of affidavits. In relation to the shareholders, the transferor/Applicant Company No. 5 seeks a direction for dispensing with holding of meetings for the purpose of obtaining their approval to the proposed Scheme.

9. In relation to the Transferee/Applicant company no. 6, it has been represented that company has 7 shareholders. We are further apprised that the Transferee/Applicant Company No. 6 has 2 Secured Creditors and 14 Unsecured Creditors. Consent- affidavits from all the shareholders and creditors have already been placed on record. In relation to the shareholders and creditors, the transferee/Applicant Company No. 6 seeks a direction for dispensing with holding of meetings for the purpose of obtaining their approval to the proposed Scheme.

10. The above application has been placed before us and this Tribunal proceeds to entertain the same. The registered offices of all the applicant companies are situated within New Delhi which are subjected to the territorial

jurisdiction of Registrar of Companies, NCT, New Delhi as well as that of this Tribunal.

11. We have perused the application and the connected documents filed along with the Scheme of Amalgamation contemplated among the Applicant Companies.

12. Applicant Company No. 1 was incorporated as a private company on 28.03.2008 under the provisions of the Companies Act, 1956 under the name *"DOLPHIN INVESTMENT MANAGEMENT PRIVATE LIMITED"*. The authorised share capital of the Company is Rs. 24,00,000 only divided into 2,40,000 equity shares of Rs. 10 each. The present issued, subscribed and paid up share capital of the Company is Rs. 15,04,470 only divided into 1,50,447 equity shares of Rs. 10 each.

13. Applicant Company No. 2 was incorporated as a private company on 22.04.2010 under the provisions of the Companies Act, 1956 under the name *"GECKO TECHNOLOGIES PRIVATE LIMITED"*. The authorised share capital of the Company is Rs. 50,00,000 only divided into 5,00,000 equity shares of Rs. 10 each. The present issued, subscribed and paid up share capital of the Company is Rs. 14,00,000 only divided into 1,40,000 equity shares of Rs. 10 each.

14. Applicant Company No. 3 was incorporated as a private company on 04.09.2009 under the provisions of the Companies Act, 1956 under the name *"SRI KRIPA SHARES AND SECURITIES PRIVATE LIMITED"*. The

authorised share capital of the Company is Rs. 75,00,000 only divided into 7,50,000 equity shares of Rs. 10 each. The present issued, subscribed and paid up share capital of the Company is Rs. 58,80,000 only divided into 5,88,000 equity shares of Rs. 10 each.

15. Applicant Company No. 4 was incorporated as a private company on 18.03.2008 under the provisions of the Companies Act, 1956 under the name *"AKANKSHA FACILITY MANAGEMENT PRIVATE LIMITED"*. The authorised share capital of the Company is Rs. 25,00,000 only divided into 2,50,000 equity shares of Rs. 10 each. The present issued, subscribed and paid up share capital of the Company is Rs. 1,00,000 only divided into 10,000 equity shares of Rs. 10 each.

16. Applicant Company No. 5 was incorporated as a private company on 30.10.2007 under the provisions of the Companies Act, 1956 under the name *"TALENT ACCESS HR SERVICES PRIVATE LIMITED"*. The authorised share capital of the Company is Rs. 25,00,000 only divided into 2,50,000 equity shares of Rs. 10 each. The present issued, subscribed and paid up share capital of the Company is Rs. 4,40,000 only divided into 44,000 equity shares of Rs. 10 each.

17. Applicant Company No. 6 was incorporated as a private company on 19.05.2010 under the provisions of the Companies Act, 1956 under the name *"SHIVA INFRA SOLUTIONS PRIVATE LIMITED"*. The authorised share capital of the Company is Rs. 24,00,000 only divided into 2,40,000

equity shares of Rs. 10 each. The present issued, subscribed and paid up share capital of the Company is Rs. 23,00,150 only divided into 2,30,015 equity shares of Rs. 10 each.

18. The Board of Directors of the Companies vide meeting held on 31.10.2017 have unanimously passed resolutions and approved the proposed Scheme of Amalgamation as contemplated above and copies of resolutions have also placed on record by thr Companies.

19. Taking into consideration the application and documents filed therewith, we propose to issue the following directions with respect to calling, convening and holding of the meetings of the Shareholders, Secured and Unsecured Creditors or dispensing with the same which are as follows:-

A. In relation to the Applicant No. 1/ Transferor Company:

i. With respect to Shareholders:

It is represented by the Applicant No. 1 that there are 3 Shareholders in the Company, all of whom have already placed their consent-affidavits on record. Therefore the necessity of convening and holding a meeting is obviated.

ii. With respect to Secured Creditors:

Since it is represented by the Applicant No. 1 that there is no Secured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

iii. With respect to Unsecured Creditors:

Since it is represented by the Applicant No. 1 that there is no unsecured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

B. In relation to the Applicant No. 2/ Transferor Company:

i. With respect to Shareholders:

It is represented by the Applicant Company that there are 3 Shareholders in the Company, all of whom have already placed their consent-affidavits on record. Therefore the necessity of convening and holding a meeting is obviated.

ii. With respect to Secured Creditors:

Since it is represented by the Applicant Company that there is no Secured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

iii. With respect to Unsecured Creditors:

Since it is represented by the Applicant Company that there is one Unsecured Creditor in the Company, who has already placed his consent-affidavit on record, the necessity of convening and holding a meeting is obviated.

C. In relation to the Applicant No. 3 Transferor Company:

i. With respect to Shareholders:

It is represented by the Applicant Company that there are 5 Shareholders in the Company, all of whom have already placed their consent-affidavits on record. Therefore the necessity of convening and holding a meeting is obviated.

ii. With respect to Secured Creditors:

Since it is represented by the Applicant Company that there is no Secured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

iii. With respect to Unsecured Creditors:

Since it is represented by the Applicant Company that there is one unsecured Creditor in the Company, who has already placed his consent-affidavit on record, the necessity of convening and holding a meeting is obviated.

D. In relation to the Applicant No. 4/ Transferor Company:

i. With respect to Shareholders:

It is represented by the Applicant Company that there are 2 Shareholders in the Company, all of whom have already placed their consent-affidavits on record. Therefore the necessity of convening and holding a meeting is obviated.

ii. With respect to Secured Creditors:

Since it is represented by the Applicant Company that there is no Secured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

iii. With respect to Unsecured Creditors:

Since it is represented by the Applicant Company that there is one unsecured Creditor in the Company, who has already placed his consent affidavit on record, the necessity of convening and holding a meeting is obviated.

E. In relation to the Applicant No. 5/ Transferor Company:

i. With respect to Shareholders:

It is represented by the Applicant Company that there are 5 Shareholders in the Company, all of whom have already placed their

consent-affidavits on record. Therefore the necessity of convening and holding a meeting is obviated.

ii. With respect to Secured Creditors:

Since it is represented by the Applicant Company that there is no Secured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

iii. With respect to Unsecured Creditors:

Since it is represented by the Applicant Company that there is no unsecured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

F. In relation to the Applicant No. 6/ Transferee Company:

i. With respect to Shareholders:

Since it is represented by the Applicant No. 2 that there are 7 Shareholders in the Company, all of whom have already placed their consent-affidavits on record. Therefore the necessity of convening and holding a meeting is obviated.

ii. With respect to Secured Creditors:

Since it is represented by the Applicant Company that there is 2 Secured Creditor in the Company, who has already placed his consent-affidavit on record, the necessity of convening and holding a meeting is obviated.

iii. With respect to Unsecured Creditors:

Since it is represented by the Applicant No. 2 that there are 14 Unsecured Creditors in the Company, who have already placed his consent-affidavits on record, the necessity of convening and holding a meeting is obviated.

Notice of this Application shall also be served on the Regional Director, Ministry of Corporate Affairs, B-2 Wing, 2nd Floor, Paryavaran Bhavan, CGO Complex, New Delhi-110 003, Registrar of Companies at 4th Floor, IFCI Tower, 61, Nehru Place, New Delhi-110 019; the Official Liquidator, Lok Nayak Bhavan, 8th Floor, Khan Market, New Delhi -110 001; the office of the Income Tax Department, Income Tax Officer, Ward – 7(4), Central Revenue Building, IP Estate, New Delhi-110 002 and Office of the Income Tax Department, Income Tax Officer, Additional Commissioner of Income Tax, Special Range-4, Central Revenue Building, IP Estate, New Delhi-110 002. The notices to Income Tax authorities shall disclose sufficient details like

PAN card numbers, ward numbers and assessing officers so that timely and proper reply may be filed.

Sd/-

18.01.2019

(M.M. KUMAR)

PRESIDENT

Sd/-

S.K. MOHAPATRA

MEMBER (TECHNICAL)

NOTE

Pronounced today in open court in pursuance of power under Rule 151 of NCLT Rules, 2016 as Hon'ble Member (Technical), Mr S.K. Mohapatra is not holding court today.

Nirmala Vincent

Court Officer